

Chapter 15

SPECIAL ASSESSMENTS*

Sec. 15-1.	Action upon receipt of petition or recommendation.
Sec. 15-2.	Contents of petition and recommendation.
Sec. 15-3.	Filing of the petition.
Sec. 15-4.	Action by city solicitor.
Sec. 15-5.	Notice of public hearing.
Sec. 15-6.	Public hearing.
Sec. 15-7.	Council action.
Sec. 15-8.	Duties of city assessor.
Sec. 15-9.	Appeals.

***Charter reference**—Special assessment procedure, § 58.

Cross references—Administration, Ch. 2; department of finance, § 2-181 et seq.; assessing division, § 2-262; streets, sidewalks and other public places, Ch. 16; subdivisions, Ch. 17; utilities, Ch. 20.

Sec. 15-1. Action upon receipt of petition or recommendation.

The city council shall give notice and hold public hearings to consider imposing special assessments when it receives:

- (a) A petition signed by the owners of at least two-thirds of the property proposed for special assessment; or
- (b) Upon receipt of a recommendation from the city manager for a special assessment. The city council shall consider and take action as it deems appropriate.

(Ord. No. 165, § 1, 1-12-77; Ord. No. 612, § 1, 9-13-2023)

Sec. 15-2. Contents of petition and recommendation.

Any petition or recommendation submitted under the provisions of section 15-1(a) shall contain within the text of the petition or recommendation or by attachments thereto:

- (1) The public improvement proposed, including surveys, plans, engineering drawings, specifications, and such other documentation as shall be necessary to clearly set forth the proposal.
- (2) An estimate of the costs of the proposed improvements, broken down by appropriate categories and line items and substantiated by persons fully qualified to give such estimates.
- (3) A roll showing the names, addresses, and title references of all the owners of the property proposed for special assessment.
- (4) The portion of the costs proposed to be defrayed by the special assessment.
- (5) The formula proposed for determining the portion of the special assessment to be taxed to specific properties.
- (6) The number of installments proposed for the special assessment.

(Ord. No. 165, § 2, 1-12-77; Ord. No. 612, § 1, 9-13-2023)

Sec. 15-3. Filing of the petition.

The original copy of the petition for a special assessment shall be filed with the city clerk along with a certificate by one (1) of the petitioners that copies of the petition and all supporting documents have been delivered to the city manager and city solicitor.

(Ord. No. 165, § 3, 1-12-77; Ord. No. 612, § 1, 9-13-2023)

Sec. 15-4. Action by city solicitor.

Within ten (10) days after receipt of a copy of the petition for special assessments, the city solicitor shall notify the council, through the city manager, and one (1) of the petitioners whether or not, in his opinion, the petition submitted meets the requirements of section 15-2; and, if it does not, what further documentation is needed. In the event further documentation is required by the city solicitor, and it is then filed in accordance with section 15-3, the city solicitor shall then notify the council, through the city manager, and one (1) of the petitioners, that the petition then meets the requirements of section 15-2.

(Ord. No. 165, § 4, 1-12-77; Ord. No. 612, § 1, 9-13-2023)

Sec. 15-5. Notice of public hearing.

At the next regular meeting of the council, after receipt of notification by the city solicitor, as required by section 15-4, or recommendation from the city manager, the council shall set a date for a public hearing and cause notice to be given to the public at least fourteen (14) days before the hearing. By certified mail, the city will properly notify all owners of the properties proposed for a special assessment of the public hearing.

(Ord. No. 165, § 5, 1-12-77; Ord. No. 612, § 1, 9-13-2023)

Sec. 15-6. Public hearing.

At the public hearing, the council shall hear the petitioners, the city manager or their designee, and all others who offer evidence or comments concerning the proposed public improvement, the costs thereof, the property proposed for the special assessment, the portion of the costs to be defrayed by the special assessment, the formula for determining the special assessment

for each property and the number of installments. If deemed necessary by the council, the hearing may be adjourned from time to time.

(Ord. No. 165, § 6, 1-12-77; Ord. No. 612, § 1, 9-13-2023)

Sec. 15-7. Council action.

If, after hearing, the council shall determine that the proposed public improvement should be approved and that the whole or any part of the expense thereof should be defrayed by special assessments upon the property especially benefited, it shall so declare by resolution. The resolution shall state:

- (1) The improvements and their specifications.
- (2) The estimated costs thereof.
- (3) The portion of the costs to be paid by special assessments and the portion to be a general obligation of the city.
- (4) The roll of properties on which the special assessments are to be levied.
- (5) The formula to be used by the city assessor to determine the portion of the special assessments to be levied against specific properties.
- (6) The number of installments in which the special assessments may be paid.

(Ord. No. 165, § 7, 1-12-77; Ord. No. 612, § 1, 9-13-2023)

Sec. 15-8. Duties of city assessor.

When the council has, by resolution, authorized special assessments, the city assessor shall:

- (1) Compute the amount of the special assessment for each property.
- (2) Bill the property owner along with the regular annual real estate tax bills.

(Ord. No. 165, § 8, 1-12-77; Ord. No. 612, § 1, 9-13-2023)

Sec. 15-9. Appeals.

In the event any property owner believes that the special assessment levied against his property is in error, he shall have the same rights for abatement and appeal as he has for other real estate taxes.

(Ord. No. 165, § 9, 1-12-77; Ord. No. 612, § 1, 9-13-2023)